

In T 2289/09 the appellant had argued that since it was accepted practice that amendment in a divisional application could be based on subject-matter searched in the parent application, it should also be accepted that subject-matter that had been searched in a divisional was considered searched subject-matter generally and could thus form the basis for amendment in a parent. These circumstances were not explicitly excluded in G 2/92 (OJ 1993, 591). The board disagreed. The Enlarged Board had stated in G 2/92 that when an applicant failed to pay the requested search fees, that subject-matter could not be pursued in the application for which the search was carried out, and furthermore that "the invention which is to be examined ... must be an invention in respect of which a search fee has been paid prior to the drawing up of the European search report". This statement had significance beyond the reasons given in G 2/92. When an applicant for a divisional application sought the benefit of an earlier search, he still had to pay the search fees (R 36(3) EPC). These were then refunded, conditional on the fulfilment of certain criteria (see decision of the President of the EPO pursuant to Art. 9(2) RFees, OJ SE 1/2010), namely if the EPO benefited from the earlier search report. There was no provision that would permit the EPO to proceed with search activities, including the examination of the claims in question and their scope, when no search fees were paid for a given part of an application, and also none that would entitle the examining division to request the payment of further search fees for the purpose of examining the usefulness of the earlier search on the divisional application.

In T 631/97 (OJ 2001, 13) the board held that R 46(1) EPC 1973 on its proper interpretation does not prohibit a review by the examining division of the search division's opinion on lack of unity where further search fees are not paid. A narrow interpretation of R 46(1) EPC 1973 whereby the finding of lack of unity by the search division is considered as final where the additional search fees are not paid would deprive the applicant of an opportunity to dispute that finding during the examination proceedings and would also unjustifiably restrict the power of the examining division on the question of unity to the subject-matter for which search fees were paid. Thus the board did not share the view held in T 1109/96. The board found the above interpretation of R 46(1) EPC 1973 to be in agreement with that of the Enlarged Board in G 2/92, and the examination procedure as set out in the Guidelines also to be in line with G 2/92. It noted furthermore, with reference to R 112 EPC 1973, that the practice of search and examination of international applications where the EPO was elected or designated Office was consistent with the above view. This decision was followed in T 708/00 (OJ 2004, 160) – also referred to in this chapter II.B.6.3.

6.2. Euro-PCT applications

An applicant may pay additional search fees in the international phase if invited to do so by the ISA under Art. 17(3)(a) PCT. Once the application has entered the European phase, R 164 EPC, as in force from 1.11.2014, allows applicants to obtain, upon payment of a (further) search fee, a search of any invention claimed which was not searched by the EPO in the international phase. Applicants may choose any invention searched by the EPO either in the international phase, in the procedure for supplementary search or in the procedure under R 164 EPC as a basis for further prosecution of the European phase (see notice of 10 June 2014, OJ 2014, A70, also for the transitional regime).

The following decisions concerning the former version of R. 164 EPC are still relevant.

In J 3/09, the Legal Board of Appeal confirmed in respect of R. 164 EPC (as then in force) that although the procedure on entry of an application into the European phase where the EPO had acted as the ISA changed with the coming into force of EPC 2000, the responsibility for establishing whether or not the application met the requirements of unity of invention still ultimately rested with the examining division, and the opinion of the EPO acting as the ISA on lack of unity was not final or binding on the examining division. The board observed that the practice of the examining division in this respect remained as before, noting in particular that to the extent that an objection of non-unity raised by the ISA turned out to be unjustified, the applicant was entitled to have the whole subject-matter of his unitary invention searched. The board in T 1285/11 followed this reasoning, adding that the fact that the applicant did not pay further search fees or protest fees in the international phase could not be seen as a tacit agreement with the findings of non-unity of the ISA.

For further decisions concerned with the interpretation and application of R. 164 EPC as in force until 31.10.2014), see the 9th edition of this book, II.B.6.2.

6.3. Applicability of Rule 64, (former) Rule 164(2) EPC or Rule 137(5) EPC

In T 708/00 (OJ 2004, 160) the board pointed out, with reference to preparatory document CA/12/94 cited in the notice from the EPO in OJ 1995, 409, that the purpose of R. 86(4) EPC 1973 (R. 137(5) EPC) was to deal with the situation arising when amended claims relating to unsearched subject-matter were filed in response to the examiner's first communication. It did not apply when the applicant had not paid the search fee in respect of a non-unitary invention in spite of being invited to do so under R. 46(1) EPC 1973 (R. 64(1) EPC), cf. also G 2/92, OJ 1993, 591. These two rules were complementary in nature.

In T 1285/11 (mentioned above), in which no further search fees had been paid in response to the ISA's non-unity objection, the examining division refused the application on the basis of R. 137(5) EPC as well as former R. 164(2) EPC. Referring to T 708/00 (OJ 2004, 160), the aforementioned notice and the Guidelines, the board found that R. 137(5) EPC was not contravened because the subject-matter of the amended claims had already been present in the claims as originally filed. Concerning former R. 164(2) EPC, the board was satisfied that, prima facie, there was a feature that could be regarded as constituting a "special technical feature" (R. 44(1) EPC) establishing unity between "invention 1" and "invention 2" in accordance with Art. 82 EPC. The decision was set aside and the application was remitted for further prosecution.

Reference is also made to chapter IV.B.5. "Amendments relating to unsearched subject-matter – R. 137(5) EPC".

6.4. Dispensing with further search fees

In W 36/90 and W 19/89, the board observed that where there was lack of unity in an international application, in particular if the objection was evident a posteriori, the search examiner might decide to supplement the international search with a search on the additional inventions as well as on the first invention. This was so particularly if the concepts of the inventions were very close and none of them required a search in different classification units, so that the search could be performed for all the inventions without creating too much extra work (see PCT Search Guidelines as agreed upon by the Interim Committee for Technical Cooperation at its seventh session in Geneva in October 1977, PCT/INT/5). In such a case no objection of lack of unity should be raised because charging further fees would be incompatible with the principle of equity vis-à-vis the applicant (see G 1/89, OJ 1991, 155; see also e.g. T 755/14).

According to T 806/18, where an independent claim is found to lack novelty, often a formal objection of lack of unity of invention could be envisaged between two or more groups of dependent claims. However, the search division (or the examining division reviewing a non-unity finding) should bear in mind that unity of invention under Art. 82 EPC is "merely an administrative regulation" (G 1/91, OJ 1992, 253) and should give due consideration to the advice from the Guidelines: "Lack of unity is not a ground of revocation in later proceedings. Therefore, although the objection is certainly made and amendment insisted upon in clear cases, it is neither raised nor insisted upon on the basis of a narrow, literal or academic approach. This is particularly so where the possible lack of unity does not necessitate a further search" (Guidelines – March 2022 version, F-V, 2.2; cf. Guidelines – November 2017 version, F-V.8, in force at the time of the contested decision). Hence, in determining whether to request further search fees, the search division should not adopt a purely algorithmic approach, but consider whether it would be reasonable, under the circumstances of the case and in the light of the subject-matter already searched and the prior art found, to demand additional fees for extending the search to the remaining claims.

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